

property which he may hold in such capacity, deals with it in a manner to serve his own ends, and contrary to the real interests of those for whom he acts. The interference of the Court is invoked in manner similar to that above stated. *ARTHURTON vs. DALLEY*,—*Grant's Chancery Reports*; and to these may be added, the large class of cases of administration of Testators and Intestates effects, and the management of the Estates of Infants and Lunatics.

These are a few, and very far from the whole, of the classes of cases, in which an Equitable jurisdiction under the system of laws which obtains in England and here is absolutely necessary. In whatever Court that jurisdiction may be vested, is a matter of comparatively little importance to the lawyer or to the student, or even to the public, provided that it be a Court competent for the purpose, and such as to satisfy the wants, but not to form a disproportionate drag upon the resources of the country. The Equity must be somewhere administered, and it must therefore be studied and practised. Nor will it continue to be studied and practised by a few only of the Profession. The more summary mode of proceeding, and the great reduction of costs in all the Courts, will render it almost out of the question for any one class of men to confine themselves to one branch of the Profession, however desirable that might, under some circumstances, be considered with a view to greater efficiency. These considerations, although perhaps stated at too great length, may be given as fair reasons among others for believing, that a publication of this kind may be useful.

The few authorities cited in these Introductory Remarks are selected, as being in a certain sense leading cases, and having been decided since the establishment of the new Courts.

In the ensuing pages it has not been attempted, in such explanatory notes as are given, to state what the precise practice may be under the New Orders, where any reasonable doubt may exist. And for this reason, that the practice is too new, to render it possible, that the construction of the Orders should be as yet settled by Decisions. In course of time, when other publications of this kind become necessary, the practice may be more clear. A year or two may give occasion, for instance, for many important deci-